

Court No. - 29

Case :- WRIT - C No. - 52272 of 2016

Petitioner :- Jay Narayan

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Bipin Kumar

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Tarun Agarwala,J.

Hon'ble Pramod Kumar Srivastava,J.

Heard learned counsel for the petitioner and Sri R.S.Umrao, the learned counsel for respondent nos.2 and 3.

The petitioner contends that the bill for a sum of Rs.6,32,754/- is incorrect as previous payment made has not been adjusted. In this regard, the petitioner has made a representation, which is pending consideration. In the meanwhile, the recovery citation has been issued for the same amount.

We dispose of the matter directing the Executive Engineer to treat the petitioner's representation as an application for correction of the bill issued under Clause 5.5 of the Electricity Supply Code, 2005 and decide the same by a reasoned and speaking order within two weeks from the date of the production of a certified copy of this order.

For a period of four weeks, the recovery proceeding shall remain in abeyance.

Order Date :- 2.11.2016

AKJ

(Pramod Kumar Srivastava,J.)

(Tarun Agarwala,J.)